Corvell. IMMIGRATION

EMPLOYER-SPONSORED WORK VISA

Sponsoring an H-1B specialty worker

A plain-language walkthrough of the cap, the lottery, and the specialty-occupation petition — from registration to a decision.



85,000 ANNUAL CAP, INCL. MASTER'S SLOTS

6 yrs STANDARD MAXIMUM STAY

FOR HR & TALENT LEADERS

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START HERE

A temporary visa, tied to a specific job and employer.

H-1B lets a US employer hire a foreign professional for a role that genuinely requires a bachelor's degree in a specific field. It is capped, selected by lottery most years, and renewable — but it is not permanent residence on its own.

~25%

RECENT LOTTERY SELECTION RATE

Varies by year with the volume of registrations. Not every eligible case gets picked.

Oct 1

EARLIEST START DATE

The government's fiscal year — status can't begin before this, whenever the petition is approved.

3

FILINGS BEFORE APPROVAL

Registration, then the LCA, then the full I-129 petition. Each has its own timeline.

WHAT'S IN THIS GUIDE

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BEFORE YOU CAN FILE

The cap and the lottery, every spring.

Unless the role is cap-exempt — universities, some non-profits, government research — every new H-1B goes through electronic registration before a full petition is ever filed.

01

Electronic registration

EARLY MARCH · $215/CANDIDATE

A short online submission with the beneficiary's basic details — no job description, no wage yet. This is the entry ticket to the lottery, not the petition itself.

02

Lottery selection

LATE MARCH

USCIS now selects from the full regular-cap pool first, then runs a second, separate drawing for the advanced-degree pool among registrations not already picked. Selection is weighted by OES wage level — a Level III or IV offer has better odds than a Level I offer for the same role.

03

90-day filing window opens

APRIL 1 – JUNE 30

Only selected candidates can move forward. This is where the real work starts — the LCA, then the full I-129 petition, both built to the job that was registered.

RULE OF THUMB

Registering the same candidate through two related employers to improve odds is grounds for disqualifying both entries — USCIS actively checks for this. One legitimate registration per candidate per employer.

ELIGIBILITY

Proving the role is a specialty occupation.

USCIS needs one of these four to hold up. Most petitions lean on the first two — they're the easiest to document convincingly.

Industry norm	A bachelor's degree in a specific specialty is normally the minimum for entry into the occupation — engineering, accounting, and most software roles clear this easily.
Industry-wide degree requirement	The degree requirement is common to parallel positions at similar organizations — evidenced with job postings from comparable employers.
Employer's own pattern	The employer normally requires a degree for the position — supported by past job postings and the credentials of people who've held the role before.
Specialized & complex duties	The specific duties are so specialized and complex that the knowledge required is usually only associated with a degree — the hardest of the four to write convincingly.

ALSO REQUIRED OF THE PERSON

The beneficiary needs that same degree — or a foreign equivalent, or a credential evaluation combining education and experience — in hand before the petition is filed, not promised for later.

BEFORE I-129

The Labor Condition Application, DOL's checkpoint.

Every H-1B petition needs a certified LCA underneath it. It commits the employer to specific wage and working-condition promises before USCIS ever sees the case.

01

Set the wage level

LEVEL I – IV

DOL's wage levels run from entry (I) to fully competent (IV) for that occupation and location. The level has to match the actual duties — understating it is the single most common RFE trigger.

02

File the LCA (ETA-9035)

7–10 DAYS · DOL

Usually the fastest stage in the whole case. DOL certifies the wage and location attestations — it does not evaluate the job itself the way USCIS later will.

03

Post notice & build the file

10 CALENDAR DAYS

The certified LCA is posted at the worksite for 10 days, and a public access file is assembled — wage source, benefits summary, and the posting itself, retrievable on request.

KEEP IN MIND

If the employee will work at a client site, a separate LCA — and often a separate itinerary — is needed for that location. Third-party placement is where DOL and USCIS both look closest.

TIMELINE

Registration to status, on the standard track.

A cap-selected case, filed with premium processing at the I-129 stage.

Regular processing without premium can add two to four months at that step.

Mar

Registration

Submit, then wait for the draw.

Apr

Selected

LCA filed the same week.

May

I-129 filed

Premium processing requested.

Jun

Approved

Within 15 business days of filing.

Oct 1

Status begins

Start of the government fiscal year.

~7 mo

REGISTRATION TO STATUS, WITH PREMIUM

15 bd

PREMIUM PROCESSING TURNAROUND

1×

LOTTERY ENTRY PER CANDIDATE, PER YEAR

COSTS

What it costs, and who is allowed to pay it.

Every fee on this page — including registration and the training fee — must come from the employer. It cannot be reimbursed by or deducted from the employee's wages.

ITEM	WHO PAYS	TYPICAL
Registration fee	Employer	$215
Base filing fee (I-129)	Employer	$780
ACWIA training fee	Employer	$750–$1,500
Fraud Prevention & Detection fee	Employer	$500
Asylum Program Fee	Employer	$300–$600
Public Law 114-113 fee (H-1B-dependent employers, 50+ staff)	Employer	$4,000
Premium processing (optional)	Either	$2,805

Government fees current at publication and subject to change without notice. The $4,000 fee applies only to employers with 50 or more US employees where more than half hold H-1B or L-1 status. Legal fees are quoted separately as a flat fee per stage.

RISK AREAS

Five things that reliably draw an RFE.

None of these are automatic denials. Each is answerable — but only if the file anticipates the question before USCIS asks it.

Third-party placement

Working at a client site invites scrutiny of who actually directs the day-to-day work. A signed end-client letter and a detailed itinerary head this off.

Wage level too low for the duties

A Level I wage paired with senior-sounding responsibilities reads as inconsistent. The level has to match what the job description actually says.

Degree not clearly related

A general business or "liberal studies" degree needs an explicit bridge to the specific specialty the job requires — don't leave USCIS to guess the connection.

New or very small company

Whether the role and the business itself are legitimate gets a closer look. An org chart, a clear business case, and proof of active operations help — especially for a first-ever H-1B hire.

Job title doesn't match the duties described

"Business Analyst" doing IT systems architecture, or "Manager" doing entry-level work, both invite a closer read. Keep the title, the duties, and the wage level internally consistent.

AFTER APPROVAL

Six years is a default, not a hard stop.

Status renews in three-year increments and can extend well past six years, or move between employers, under specific conditions.

PAST YEAR SIX

A pending or approved PERM (filed at least 365 days earlier) buys one-year extensions indefinitely. An approved I-140 with an unavailable visa number buys three-year extensions instead.

CHANGING EMPLOYERS

"Portability" lets the employee start with a new sponsoring employer the moment that employer's petition is filed — no need to wait for approval, as long as status hasn't lapsed.

BETWEEN JOBS

A 60-day grace period (or until the end of authorized status, whichever is shorter) follows a layoff — enough time to find a new sponsor or change status, but it moves fast.

CAP-EXEMPT TRANSFERS

Moving to — or concurrently working for — a university or qualifying non-profit doesn't touch the cap at all, and can happen any time of year.

LOOKING AHEAD

H-1B is a bridge. It isn't the destination.

Most employees who stay long-term move toward permanent residence while still on H-1B status — the two run in parallel, not in sequence.

EB-2 or EB-3 sponsorship

The usual next step — labor certification (PERM), then an I-140 petition, sponsored by the same or a new employer. See our EB-2 and PERM guides for the full process.

Timing it right

Starting PERM by year four of H-1B status keeps the door open for extensions past year six, even if the green card itself takes longer.

Nothing changes day-to-day

The employee keeps working on H-1B status while the green card process runs — there's no gap or lapse in authorization to manage.

One team, one file

We carry the case history forward — the same job description, wage data, and documentation built during H-1B sponsorship inform the PERM filing later.

FAQ

Questions we answer every week.

What if we don't get selected in the lottery?	You can register again the following March. In the meantime, we can talk through whether another visa category fits the candidate — or whether a cap-exempt role makes sense.
Can the employee's spouse work?	An H-4 spouse can request work authorization, but only if the H-1B holder has an approved I-140 or an extension under H-1B-specific provisions — not automatically.
Does a promotion or raise require a new filing?	A raise alone usually doesn't. A material change in job duties, worksite, or title generally requires an amended petition — flag the change before it happens.
Is a master's degree from abroad treated the same?	Yes, with a credential evaluation confirming US equivalence — and it may still qualify for the master's cap pool, which has better odds than the regular pool.
Can we sponsor someone already in the US on another visa?	Yes — a change of status can often be requested in the same petition, avoiding a trip abroad for a new visa stamp, as long as their current status stays valid throughout.
When should we start the process?	Registration opens in March for an October start — plan the job description and wage level by January so the LCA and petition aren't rushed if selected.

WORKING WITH CORVELL

You should never have to ask where a case stands.

One intake, then we drive

A single structured intake per case. After that we chase the registration, the LCA, and the filing deadlines — not your HR team.

A dashboard, not a thread

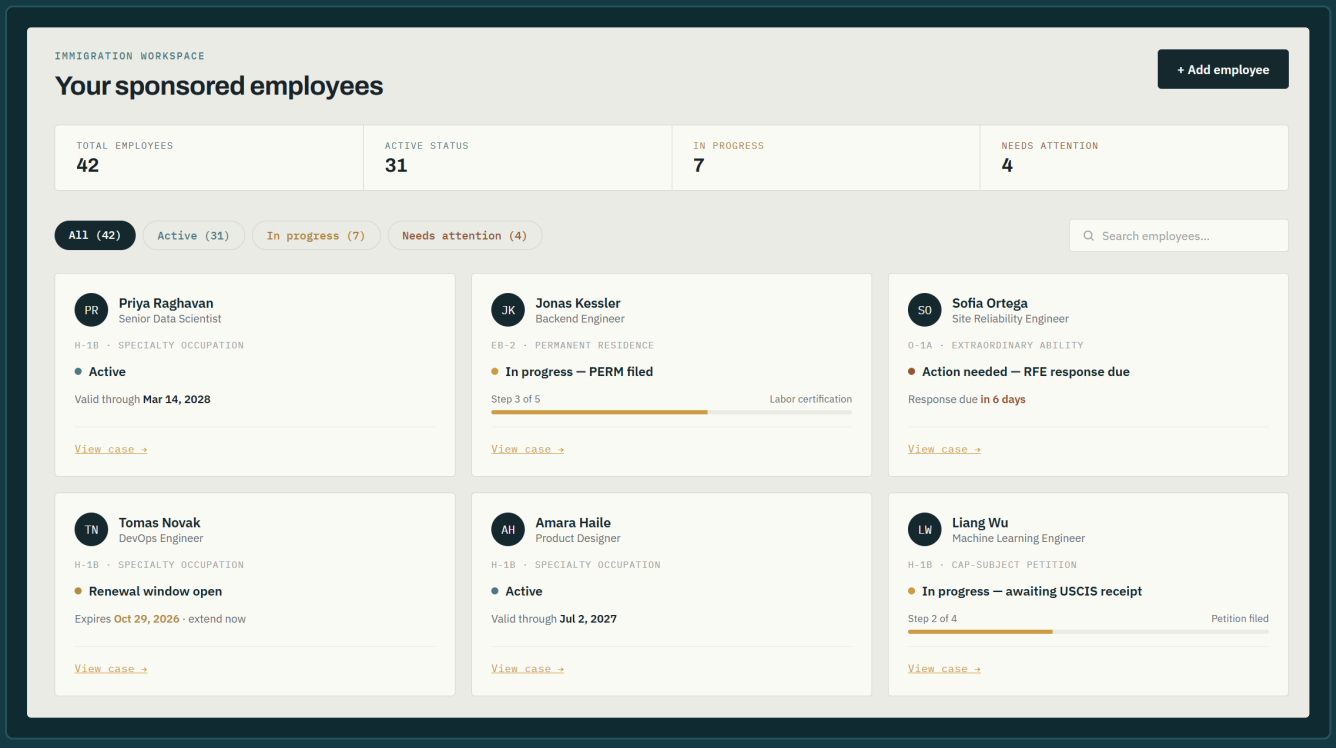
Every matter runs through auditable workflows with live status. No version-guessing, no buried email.

Flat fees, per stage

Quoted before we start, 20–40% below conventional firms, with no junior-associate markups added on the way.

Ready before the deadline

Registration and LCA paperwork prepared ahead of the March window, so a lottery selection doesn't mean a scramble.



NEXT STEP

Send us the role. We'll tell you the odds, the cost, and the timeline.

A 30-minute call is usually enough to know whether the role clears the specialty-occupation test — and what to have ready before March.

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